

		As Plaintiff concedes there is no fraud, the court SUSTAINS the demurrer to the fifth cause of action without leave to amend. (See, e.g., <i>Setliff v. E. I. Du Pont de Nemours & Co.</i> (1995) 32 Cal.App.4th 1525, 1536 [“Plaintiff’s papers in opposition are reliable indications of his position on the facts and we may use these statements as admissions against him”].) Defendant to give notice.
3	Skarlat vs. Hoag Memorial Presbyterian	<u>Demurrer</u> <u>Motion to Strike</u> OFF-CALENDAR. Defendant HOAG MEMORIAL HOSPITAL PRESBYTERIAN filed a demurrer and a motion to strike on 9/26/24, both directed at the <i>original</i> Complaint. Plaintiff MICHAEL SKARLAT filed a First Amended Complaint (FAC) on 9/17/24. The filing of the FAC renders the demurrer and motion to strike moot since the original Complaint has been superseded and the FAC is now the operative pleading. (See, e.g., <i>State Comp. Ins. Fund v. Superior Court</i> (2010) 184 Cal.App.4th 1124, 1131 [“Because there is but one complaint in a civil action [citation], the filing of an amended complaint moots a motion directed to a prior complaint.”]; <i>JKC3H8 v. Colton</i> (2013) 221 Cal.App.4th 468, 477 [“the filing of an amended complaint renders moot a demurrer to the original complaint”].) Moving Defendant to give notice.
7	Blancas vs. Kimco Staffing Services, Inc.	<u>Motion to Compel Arbitration</u> The court GRANTS the Motion to Compel Arbitration filed by Petitioners RAFAEL BLANCAS, LIZET DE LA ROSA, CESAR CASIANO, ALAN CABANAS, CHRISTOPHER DRAKE, SCOTT MORENO, CRISTAL ESTRADA, ROBERT MEINHARDT, DEBBIE HERNANDEZ, and JOSE CAMACHO, as against Respondent KIMCO STAFFING SERVICES INC.

Based upon the documents presented, the court finds that the parties entered into a written agreement to arbitrate and that the claims are covered by that agreement.

Respondent does not dispute the existence of the arbitration agreements or dispute that the agreements cover the claims at issue. Rather, Respondent argues that arbitration should not be compelled based upon exceptions in the arbitration statute (Code of Civ. Proc., § 1281.2). More specifically, Respondent first argues that the motion (and entire Petition for Order Appointing Arbitration) is moot because Petitioners are members of a pending class settlement in class action JCCP 5321 involving the same claims. Second, Respondent argues that Petitioners explicitly waived arbitration by agreeing to stay their arbitration then proceeding to file a litigation as members of a class seeking relief for the same data breach in state court.

Section 1281.2 of the Code of Civil Procedure provides,

“the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that:

“The right to compel arbitration has been waived by the petitioner; or

...

“A party to the arbitration is also a party to a pending court action or special proceeding with a third party, arising out of the same transaction or series of related transactions and there is a possibility of conflicting rulings on a common issue of law or fact.”

(Code of Civ. Proc., § 1281.2(a), (c).)

(1) Mootness based upon JCCP 5321?

Respondent’s first argument re mootness appears to be based upon Subsection (c) of Section 1281.2. That provision however does not appear to apply here. Subsection (c) concerns another pending action “with a

third party”. Respondent does not show that any such third party is involved here.

Moreover, Respondent does not show that Petitioners are parties in the other action. None of the Petitioners in the instant action appear to be named Plaintiffs in the other action. Respondent simply highlights that the same counsel represents the named class action plaintiff (Pittman) and the 69,688-employee class would include Petitioners. Respondent proffers the Class Action Complaint filed on 12/21/23 (Balatero Decl., ¶19, Exh. 3) but Respondent did not argue or show that any class has been certified by the court. Moreover, “[u]nnamed parties may be considered ‘parties’ for the limited purpose of discovery, but those same unnamed parties are not considered ‘parties’ to the litigation.” (*Hernandez v. Restoration Hardware, Inc.* (2018) 4 Cal.5th 260, 266-267 [also explaining that “[u]nnamed class members may become parties of record to class actions in one of two generally acceptable ways” – to wit, by (1) filing a timely complaint in intervention or (2) by filing an appealable motion to set aside and vacate the class judgment].)

Further, that Petitioners have not “opted out” of a class is also of no avail, as Respondent admits the matter has not yet been approved for settlement. Generally, putative class members are not presented with the option to “opt out” until a settlement has been reached and approved, and the settlement notices have been distributed. Respondent has produced no evidence that Petitioners were presented with any opportunity to opt out of the *Pittman* class action.

In sum, Respondent has not shown that any of the Petitioners in the instant action are parties to another action that would warrant denying the motion to compel arbitration.

(2) Waiver of Arbitration?

Respondent’s second argument is that Petitioners have waived their right to arbitrate. Respondent contends that because Petitioners agreed to stay arbitration pending settlement discussions, they waived their right to compel